

Amendment No. 1 to SB2069

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2069

House Bill No. 1694*

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "Tennessee K-9 Emergency Medical Care and Transport Act."

SECTION 2. Tennessee Code Annotated, Title 63, Chapter 12, Part 1, is amended by adding the following as a new section:

(a) Emergency medical services personnel are immune from discipline by the board of veterinary examiners for emergency medical services regulated by the Tennessee emergency medical services board.

(b) Subsection (a) does not provide immunity for the provision of veterinary medicine that an emergency medical services personnel may provide during the transport of a canine first responder, pursuant to § 68-140-336.

SECTION 3. Tennessee Code Annotated, Section 63-12-133, is amended by adding the following as a new subsection:

(d)

(1) Emergency medical services personnel who transport or provide emergency care to a canine first responder injured in the line of duty pursuant to § 68-140-336 are not required to be licensed under this chapter.

(2) Emergency medical service personnel transporting or providing authorized care, as described in § 68-140-336, are not engaged in the unauthorized practice of veterinary medicine.

SECTION 4. Tennessee Code Annotated, Title 68, Chapter 140, Part 3, is amended by adding the following as a new section:

68-140-336.

(a) As used in this section, "canine first responder" means a dog:

(1) With specialized training, or in the process of receiving specialized training, for police, military, or patrol work; detection work; or search-and-rescue; and

(2) Being used by and under the control of a federal, state, or local law enforcement officer, railroad police officer commissioned pursuant to § 65-6-133, or a member of the United States armed forces or of a reserve or Tennessee national guard unit in the performance of the officer's or member's law enforcement or military duties.

(b) Emergency medical services personnel may:

(1) Transport a canine first responder injured in the line of duty to a veterinary clinic, veterinary hospital, or other similar facility, if there is no individual who requires medical attention or transport at that time; and

(2) Provide emergency care to a canine first responder injured in the line of duty while at the scene of the injury or while the canine first responder is being transported pursuant to subdivision (b)(1).

(c) Emergency medical services personnel who act in good faith to provide emergency care to a canine first responder pursuant to subdivision (b)(2) are immune from criminal and civil liability as it relates to any injury or harm caused to the injured canine first responder. Emergency medical services personnel are also immune from criminal and civil liability for refusing to provide care to or transport an injured canine first responder.

(d) Emergency medical services personnel providing services pursuant to this section are immune from discipline from the Tennessee emergency medical services board regarding the provision of veterinary medicine.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.